

Urban Ark Conservation, Inc.
A 501(c)(3) nonprofit corporation
EIN – 81-1189061
Board Charter

CHARTER OF URBAN ARK CONSERVATION, INC.

1. The name of the corporation is Urban Ark Conservation, Inc.
2. The corporation is a public benefit corporation.
3. The corporations registered office shall be at 211 Fisher Lane, Effort PA 18330.
4. The incorporator shall be Chad McCarthy.
5. The street address for the principal office shall be 211 Fisher Lane, Effort PA 18330.
6. The corporation shall not be for profit.
7. The corporation shall have members.
8. The corporation is organized exclusively for charitable, religious, educational and scientific purposes, including for such purposes, the making of distributions to organizations that qualify as exempt organizations under section 501(c)(3) of the Internal Revenue Code, or corresponding sections of any future federal tax code.
9. Notwithstanding any other provision of this charter, this corporation shall not carry on any other activities not permitted to be carried on by: (a) a corporation exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code of 1954 or the corresponding provision of any future United State Revenue law or (b) a corporation contributions to which are deductible under Section 170(c)(2) of the Internal Revenue Code of 1954 or corresponding sections of any future Internal Revenue law.
10. In the event of dissolution, the residual assets of the organization shall be turned over to one or more organizations which themselves are recognized as exempt under Section

501(c)(3) of the Internal Revenue Code of 1954 or corresponding sections of any prior or future Internal Revenue Code, or to the federal, state, or local government for exclusive public purpose.

11. The primary purpose of the corporation is to help veterans and first responders through agricultural therapy in a safe and calm environment.
12. The corporation shall, in addition, be empowered to carry out any activities authorized by the Pennsylvania Domestic Nonprofit Corporation law and that may be carried out by organizations that are exempt under Section 501(c)(3) of the Internal Revenue Code.
13. The corporation shall make or pay no compensation, loan or other payment to any officer, board member, creator or organizer of the corporation, or substantial contributor to it, except as reasonable compensation for goods or services rendered or as reasonable reimbursement for authorized expenditures incurred on behalf of the corporation. No part of the corporation's assets or net earnings, current or accumulated, shall ever be distributed to or divided among such persons or private individuals, pursuant to the provisions of Section 501(c)(3).
14. No substantial part of the activities of the corporation shall be the carrying on of propaganda or otherwise attempting to influence legislation. The corporation shall not participate in, or intervene in any way (including the publishing or distribution of statements) in any political campaign or on behalf of or in opposition to any candidate for public office.
15. Under the authority of Section 5741-5750 – Indemnification – of the Pennsylvania Domestic Nonprofit Corporation Law, a director shall not be personally liable to the corporation or its members for monetary damages for breach of fiduciary duty as a

director, except that this provision shall not eliminate or limit the liability of a director for:

- a. Any breach of the director's duty of loyalty to the corporation or its members; or
- b. Any acts or omissions not in good faith or which involve intentional misconduct or knowing violation of law: or
- c. Any unlawful distribution of assets in violation of the Pennsylvania Domestic Nonprofit Corporation Act.

16. The corporation shall not discriminate against any person on the basis of race, color, sex, national origin, religion, disability, age and any other basis prohibited by law. This policy of nondiscrimination applies to the hiring of personnel, election of board members, provision of services to the public, contracting for and purchasing of services and all other activities of the corporation. This policy of nondiscrimination includes, but is not limited to, a commitment to full compliance with Title VI of the Civil Rights Act of 1964; and any subsequent amendments thereto.

Dated this ____ day of _____, 20____,

Chad McCarthy, Incorporator